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Franciscan sisters' school

Human Rights committee: Research Report

The Rights Of Minors Under Criminal Justice Systems.

Human Rights

Key terms and Definitions:

Juvenile justice:

refers to the laws, policies, and procedures governing children and adolescents in legal system. It addresses delinquent acts, status offenses, and issues of child welfare, such as neglect and abuse. Juvenile courts and tribunals handle cases, with the goal of rehabilitation and societal protection. The juvenile justice systems aim to balance the rights of victims, the rehabilitation of offenders, and community safety, often emphasizing restorative justice and reintegration.

Minor:

A minor is someone under a certain age, according to the UN Convention on the Rights of the Child. usually the age of majority, which demarcates an underage individual from legal adulthood. The age of majority depends upon jurisdiction and application, but it is commonly between 18 and 21. Minor may also be used in contexts that are unconnected to the overall age of majority.

Legal age:

the age at which a person enters full adult legal rights and responsibilities (as of making contracts or wills)

The age of criminal responsibility:

This age refers to the minimum age at which a child is presumed to have the capacity to infringe penal law, with variations influenced by emotional, mental, and intellectual maturity as well as cultural, historical, and social factors. This age can differ across countries

Legal counsel:

A lawyer who provides legal advice and represents a person during legal proceedings.

Rehabilitation:

Rehabilitation is an essential part of universal health coverage

along with promotion of good health, prevention of disease, treatment and palliative care.it helps a child, adult or older person to be as independent as possible in everyday activities

Child-friendly justice:

A justice system is designed to make legal proceedings accessible, understandable, and appropriate for children.

Pre-trial detention:

refers to the deprivation of liberty for a suspect or an accused person on criminal charges before the completion of their trial when there are reasonable grounds to believe that they committed the crimes charged and that their detention appears to be necessary to render justice.

Background:

Juvenile Justice System in the United States

The juvenile justice system in the United States is a separate system from the adult criminal justice system. It was created specifically for minors because young people are still developing and may respond differently to punishment and rehabilitation than adults. The main goal is therefore not only to hold young people accountable, but also to help them change their behavior and become productive members of society. Most young people are dealt with through juvenile courts, while only around 1% are sent to adult courts.

The first juvenile court was established in Chicago in 1899. It was based on the idea that young offenders should have the opportunity to be rehabilitated instead of simply being punished. Early juvenile courts, however, did not provide minors with many of the legal protections given to adults. This changed with the 1967 Supreme Court case *In re Gault*, which gave young people important due process rights, including the right to an attorney, the right to know the charges against them, the right to question witnesses, and the right not to incriminate themselves.

The Supreme Court later made several decisions recognizing that minors should not always be treated in the same way as adults. In *Roper v. Simmons* (2005), the Court ended the death penalty for crimes committed by juveniles. In *Miller v. Alabama* (2012), it ruled that mandatory life imprisonment without parole for juvenile offenders was unconstitutional. These decisions were influenced by the understanding that adolescents are still developing and have a greater capacity for change.

A major federal law concerning juvenile justice is the Juvenile Justice and Delinquency Prevention Act (JJDPA), which was first passed in 1974. It provides several important protections for young people. These include preventing minors from being held in adult jails, protecting them from contact with adult inmates in exceptional situations, limiting the detention of young people for status offenses such as skipping school or running away, and requiring states to work toward reducing racial and ethnic disparities in the system.

The juvenile justice system places a strong emphasis on rehabilitation. Research on adolescent development shows that teenagers are more likely to take risks and act impulsively because their brains are still developing. At the same time, this means that young people have a strong ability to learn from their mistakes and change their behavior. Many young people also naturally stop offending as they become older.

Because of this, many juvenile justice systems prefer community-based and evidence-based programs instead of incarceration when possible. Probation is the most common response in juvenile court. It allows a young person to remain in their community while following certain conditions and receiving support. Other possible outcomes include diversion programs, residential treatment, detention, or commitment to a juvenile facility.

Juvenile cases also use different terminology from adult criminal cases. Instead of being found "guilty" or "innocent," a young person can be adjudicated delinquent. A case may also be dismissed or sent to a diversion program, allowing the young person to receive help without going through the full court process. A young person is considered detained when they are held while waiting for their hearing, while committed generally refers to placement after the court has made a decision about the case.

Another approach used in many states is Balanced and Restorative Justice (BARJ). This approach focuses on three main goals: protecting public safety, helping young people develop positive skills, and making young people accountable for the harm they caused to victims and the community.

Some young people may also be involved in more than one system. For example, dual-status or crossover youth are involved in both the juvenile justice system and the child welfare system. Some states also allow extended jurisdiction, meaning that certain consequences can continue after the normal juvenile court age, sometimes until the age of 21. In some states, blended sentencing allows juvenile courts to impose certain adult sanctions or extend a sentence beyond the normal juvenile jurisdiction.

Overall, the juvenile justice system is based on the idea that minors should be held accountable while also being given an opportunity to rehabilitate and change. This makes rehabilitation, adolescent development, public safety, and the protection of young people's rights important parts of juvenile justice policy.

Treaties and organizations:

- UNICEF

UNICEF supports a child-friendly juvenile justice system. Its position is that children who commit offences should not simply be punished like adults. Instead, the system should focus on:

- Rehabilitation and reintegration into society.
- Education and psychological/social support.
- Using detention as a last resort and for the shortest appropriate period.
- Protecting children from violence, abuse, and degrading treatment.
- Giving children legal assistance and a fair opportunity to participate in proceedings.
- Considering the child's age and level of maturity.

- OHCHR

OHCHR applies human-rights principles to children in conflict with the law. It emphasizes that children retain their human rights even when accused or convicted of a crime.

Important principles include:

- Right to a fair trial.
- Right to legal assistance.
- Protection from torture and cruel, inhuman, or degrading treatment.
- Protection of privacy and dignity.
- Presumption of innocence.

- UN committee on the rights of the child

The Committee has emphasized that children in conflict with the law must be treated according to their age and developmental needs.

It supports principles such as:

- No arbitrary detention.
- Detention should be a last resort.
- Children should be treated with dignity.
- Children should have access to legal representation.
- Children should have their best interests considered.
- Juvenile justice should aim at rehabilitation and reintegration.

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- Convention on the rights of the child (CRC)

The CRC is an international human-rights treaty adopted by the UN in 1989. It is one of the most important international documents concerning children's rights.

It says that children accused of breaking the law should be treated in a way that:

- Respects their human dignity.
- Takes their age into account.
- Promotes their reintegration into society.
- Gives them a fair legal process.
- Provides appropriate legal safeguards.

- Beijing rules

Unlike the CRC, the Beijing Rules are not a treaty. They are international standards/guidelines.

Their approach to juvenile justice, they emphasize:

- Juveniles should be treated according to their age and circumstances.
- The justice system should encourage rehabilitation.
- Authorities should consider alternatives to formal prosecution.
- Detention should be avoided whenever possible.

- Proceedings should protect the child's privacy.
- Juveniles should receive appropriate legal protection.

Critical events:

The Convention on the Rights of the Child 1989: is an international treaty adopted by the United Nations with the aim of protecting children, their rights, and their treatment. Article 37 of the

Convention focuses on the prohibition of torture against children and stipulates that detention should be a last resort and for the shortest possible period.

The International Covenant on Civil and Political Rights is a 1966 United Nations treaty that emphasizes the importance of children knowing the charges against them, receiving a fair trial, not being tried as adults, and having legal procedures appropriate to their age.

The Beijing Rules: adopted by the UN in 1985, set standards for treating minors in the criminal justice system. They promote fair treatment, legal protection, alternatives to detention, and rehabilitation instead of punishment alone.

The Tokyo Rules: adopted by the United Nations in 1990 and focus on using alternatives to prison and detention. They encourage countries to use measures such as supervision, community service, counseling, and treatment instead of detention when possible. For minors, these alternatives can help them avoid the negative effects of detention and give them a better chance to change their behavior and stay connected to their families, schools, and communities.

Current situation:

- Currently, the topic of rights of minors in criminal law is an essential problem in today's world. Many states have established juvenile justice systems that aim at rehabilitation, education, and finding alternatives to detention. However, juvenile offenders are continually being held in police lockups, detention facilities, and prisons in many countries. According to UNICEF, about 259,000 children were detained in 2024. The main obstacles faced by the child are long detention, insufficient access to legal aid, poor detention conditions, and the equation of children to adults in some cases. Countries differ in the definition of the age of criminal responsibility. There is a growing global interest in using restorative justice and juvenile rehabilitation.

- Terrorist organizations in countries such as Syria, Iraq, and Afghanistan can take advantage of the young age, vulnerability, and difficult conditions of detained or convicted children to influence them and gain their loyalty. This can happen by spreading extremist ideas, pressuring children to join the organization, or using relationships between detainees to spread these ideas and recruit others. This creates both security and human rights problem, because prisons that should focus on accountability and rehabilitation can become places where minors are exposed to further recruitment and radicalization.

- Long periods of detention and hard living conditions can increase the risk of children being exposed to extreme ideas by ISIS. The United Nations has warned that children in northeastern Syria face risks of violence, exploitation, especially in detention centers and camps. A recent UNICEF report states that over 1,000 children have been detained arbitrarily or indefinitely for suspected links to armed groups, while about 25,500 children whose families are suspected of links to ISIS live in the Al-Hol and Al-Roj camps. This poses a major challenge for criminal justice systems. If children are kept for long periods without education, rehabilitation, or psychological support, they become more vulnerable to extremist influence. Therefore, UNICEF calls for protecting and supporting these children through education, rehabilitation, and their safe reintegration into their families or home countries.

- # Questions to consider:

1. How can states guarantee minors access to legal counsel and a fair child friendly trial?

2. Should detention and pre-trial detention of minors be limited to exceptional circumstances and what alternatives can states provide?

3. What should the minimum age of criminal responsibility be and should there be an international standard?

4. How can criminal justice systems balance a minor's right to rehabilitation with accountability for their actions?

5. How do states protect the rights of minors while also protecting victims and maintaining public safety?

6. How can developed countries improve their justice and oversight systems for minors?

Helpful resources:

1.https://knowledge.unicef.org/child-rights/child-rights-and-justice-system

2.https://data.unicef.org/wp-content/uploads/2021/11/Children-in-detention_Estimating-the-number-of-children-deprived-of-liberty_2021.pdf?client_id=1324119327.1787934068&session_id=1787934067

3.https://ojjdp.ojp.gov/juvenile-justice-101

4.https://www.ohchr.org/en/instruments-mechanisms/instruments/united-nations-rules-protection-juveniles-deprived-their-liberty

5.https://docstore.ohchr.org/SelfServices/FilesHandler.ashx?enc=AxuPEjhD7ctnjvGor5v4AbVT01ZMoubbLC7ahMMmHQ%2FOO%2Bo1LtadUZ3lx%2FHBR0iMyhOtDQJ74WaQnw2nrG%2BWeg%3D%3D&utm_source=chatgpt.com

6.https://www.proquest.com/docview/216797364?sourcetype=Scholarly%20Journals